Majority of States have now set up regular courts at Taluka level. Further, reluctance of police officials and other State functionaries to invoke jurisdiction of Gram Nyayalayas, lukewarm response of the Bar, non-availability of notaries and stamp vendors, problem of concurrent jurisdiction of regular courts are other issues indicated by the States which are coming in the way of operationalization of the Gram Nyayalayas.

The issues affecting operationalization of the Gram Nyayalayas were discussed in the Conference of Chief Justices of High Courts and Chief Ministers of the States in April, 2013. It was decided in the Conference that the State Government and High Court should decide the question of establishment of Gram Nyayalayas wherever feasible, taking into account their local problems. The focus is on setting up Gram Nayayalayas in the Talukas where regular courts have not been set up.

COMMERCIAL COURTS

The Commercial Courts Act, 2015 was enacted for the constitution of Commercial Courts, Commercial Appellate Courts, Commercial Division and Commercial Appellate Division in the High Courts for adjudicating commercial disputes of specified value. Under the Act, the 'commercial dispute' is defined broadly to mean dispute arising out of ordinary transactions of merchants, bankers, financiers and traders such as those relating to mercantile documents; joint venture and partnership agreements; intellectual property rights; insurance and other areas.

 **Reasons**

While introducing the Commercial Courts Bill, 2015, in the Parliament, the Central Government gave the following reasons for establishing the Commercial Courts:

1. The proposal to provide for speedy disposal of high value commercial disputes has been under consideration of the Government for quite some time. The high value commercial disputes involve complex facts and question of law. Therefore, there is a need to provide for an independent mechanism for their early resolution. The early resolution of commercial disputes shall create a positive image to the investor world about the independent and responsive Indian legal system.

2. The Law Commission of India, in its 253rd Report, has recommended for the establishment of the Commercial Courts, the Commercial Division and the Commercial Appellate Divisions in the High Courts for disposal of commercial disputes of specified value.

3. Based on the above recommendations of the Law Commission, the said Bill was introduced in the Parliament. As provided in the said Bill, all the suits, appeals or applications related to commercial disputes of specified value are to be dealt with by the Commercial Courts or the Commercial Division of the High Courts.

4. The proposed Bill shall accelerate economic growth, improve the international image of the Indian Justice delivery system, and the faith of the investor world in the legal culture of the nation.

 **Features**